

Fact Sheet: Regular and Systematic Casual Employment

1. Overview

Since the introduction of new casual conversion laws in 2024, the onus has shifted to employees to initiate conversion to permanent employment under the Employee Choice Pathway. However, recent Fair Work Commission decisions have made it clear: this change does not remove the risk of unfair dismissal.

Employers remain at risk when terminating casual employees who have worked regular and systematic shifts, particularly where:

- The shifts are assumed to be ongoing, or
- The employee has developed a reasonable expectation of continued employment.

Even if a casual refuses conversion, they may still qualify for unfair dismissal protections.

2. What is "Regular and Systematic" Casual Employment?

Under s 384(2)(a) of the Fair Work Act 2009 (Cth), a casual employee's service counts toward the minimum employment period if:

- The employment was on a regular and systematic basis, and
- The employee had a reasonable expectation of continuing employment on that basis.

"Regular and systematic" does not mean identical shifts every week. Instead, it refers to:

- Predictable rostering (even if variable),
- Ongoing offers of work,
- A consistent pattern of engagement over time.

3. Legal Significance

A regular and systematic casual employee may:

- Access unfair dismissal protections (if the minimum service period is met),
- Be eligible to convert to permanent employment (through either employer offers or the Employee Choice Pathway),
- Bring a general protections claim if terminated for asserting workplace rights (e.g. refusing conversion).

Refusing casual conversion does not waive these rights.



4. Key Case Examples

Parsons v Forme Spa Pty Ltd [2025] FWC 2334

- Casual receptionist worked regular Saturday shifts and occasional weekdays.
- FWC found the work was regular and systematic, and the employee had a reasonable expectation of ongoing employment.

Stuart Edwards v Visy Packaging [2025] FWC 2172

- Regular casual removed from shifts due to downturn.
- FWC held the employee was protected from unfair dismissal based on pattern and expectation.

Yuri Humeniuk v Sculpture by the Sea Inc [2025] FWCFB 212

- Long-term project based casual told the working relationship was being “paused.”
- FWC Full Bench held this was a dismissal; casual label did not override the ongoing nature of engagement.

5. Indicators of Regular and Systematic Employment

- ✓ Worked a consistent shift (e.g. same day each week) over months or years
- ✓ Routinely rostered in advance by the employer
- ✓ History of shift acceptance and employer expectation of availability
- ✓ Ongoing communication about future work
- ✓ Absences explained and re-engagement after gaps
- ✓ Employee appears in regular staff schedules, not just ad hoc lists

6. Employer Risks and Obligations

If a casual employee is regular and systematic, employers must:

- Not assume they can be terminated without process,
- Ensure a valid reason and fair process before dismissal,
- Respond to conversion requests or Employee Choice Notifications under Division 4A of the FW Act,
- Avoid adverse actions (e.g. termination after asserting workplace rights).



7. Best Practices for Employers

- Regularly audit casual engagements to identify patterns.
- Clarify expectations: keep job descriptions and employment agreements updated.
- Track rosters and timesheets to spot regularity.
- Document shift offers and responses.
- Use clear language when ending a casual engagement — avoid ambiguous phrases like “pause the relationship.”
- Before terminating, review:
 - Pattern of engagement,
 - Whether the person meets s 384(2)(a) criteria,
 - Procedural fairness (warnings, meetings, right to respond).

8. Conclusion

Regular and systematic casuals enjoy more protections than many employers realise. If an employee has been consistently rostered, relied upon, and reasonably expects ongoing shifts, they may have the right to challenge dismissal — and to convert to permanent status.

Employers should proactively review casual arrangements and treat termination decisions involving regular casuals with the same level of care as for permanent employees.

For advice in managing casual employment, contact the team at Inject.

